

“All the News
That’s Fit to Print”

The New York Times

VOL. CLXXIV . . . No. 60,416

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FRIDAY, JANUARY 31, 2025

Prices in Canada may be higher

\$4.00

PATEL WON’T SAY IF HE’D USE F.B.I. TO HUNT HIS FOES

SNUBBING DEMOCRATS

Nominee Suggests That
He Doesn’t Approve
of Jan. 6 Pardons

This article is by *Adam Goldman, Glenn Thrush, Devlin Barrett and Charlie Savage.*

WASHINGTON — Kash Patel, President Trump’s pick to run the F.B.I., repeatedly evaded the question of whether he would investigate officials on a published list of his perceived enemies during his confirmation hearing on Thursday, as he sought to allay fears about his fitness to serve and his fealty to President Trump.

In trying to distance himself from far-right associates and his own statements, Mr. Patel, a cocky and confrontational Trump



Kash Patel, 44, has little experience in law enforcement.

loyalist, suggested he disagreed with Mr. Trump’s decision to pardon Jan. 6 rioters who attacked law enforcement officials. It was a rare divergence from a president who selected him to run the nation’s most powerful law enforcement agency.

Asked if he agreed with Mr. Trump’s broad grant of clemency on the day he was inaugurated, Mr. Patel, a former congressional

GABBARD Senators of both parties sharply questioned the pick for national intelligence. **PAGE A15**

KENNEDY The health nominee faced shouting matches and angry accusations. **PAGE A16**

Tumult During Hostage Release Angers Israel but Buys Hamas

This article is by *Adam Rasgon, Aaron Boxerman, Hannah Beech, Mukhtita Suhartono, Johnatan Reiss and Yonette Joseph.*

JERUSALEM — Israel and Hamas exchanged a new group of hostages and prisoners on Thursday in a handover that devolved into chaos as the armed militants struggled to control a chanting, jostling crowd of Palestinians trying to catch a glimpse of Israelis held captive during 15 months of war.

Hamas released a total of eight



The Israeli hostage Arbel Yehoud in Gaza on Thursday.

Skepticism Over India Toll

A low death count and the release of only good news about a Hindu festival where the tragedy occurred are seen more as public relations moves. **PAGE A4**

Was U.K. Attack Terrorism?

The case of a teen boy who killed three girls in a stabbing spree at a dance class has led to calls to re-evaluate counterterrorism strategy. **PAGE A6**

Migrants Pack a Paris Theater

The Gaité Lyrique has become a hub for migrants waiting for officials to rule on whether they are minors and eligible for benefits like housing. **PAGE A10**

CONGRESSIONAL MEMO

Trump Elbows Past Congress; G.O.P. Shrugs

White House Bypasses Checks on Power

By **CARL HULSE**

WASHINGTON — Congress passed a law shutting down TikTok, and President Trump flouted it. Congress required advance notification for removing inspectors general, and the Trump administration fired them on the spot. Congress approved trillions of dollars in spending, and Mr. Trump ordered it frozen unless the federal programs receiving it passed his ideological litmus tests.

The new administration is quickly demonstrating that it does not intend to be bound by legal niceties or traditional checks and balances in its relationship with Congress. That has alarmed Democrats but drawn shrugs and approval from Republicans, who say that Mr. Trump is delivering what he promised even if it comes at the expense of Congress’s authority and constitutional status as a coequal branch of government.

“President Trump clearly ran for office to be a disrupter, and he’s going to continue to do that,” said Senator of Wyoming, the No. 2 Republican.

Mr. Trump is also clearly embarking on a test of what he can cow a Congress under total Republican control into swallowing. Early indications are that it will be a lot.

In addition to his rush to snatch the power of the purse away from lawmakers, he has sent up a crop of cabinet nominees who would have never passed muster on Capitol Hill in the past, daring Republicans to either back them or risk the wrath of the movement behind Mr. Trump. All but a few have snapped into line.

He has offered a government-wide payout to entice millions of federal workers to resign, with scant recognition that Congress might want a say in such a drastic reshaping of the government it funds.

“He’s testing his own authority,” Senator Kevin Cramer, Republican of North Dakota, said of the president’s anti-Congress flex. “He’s getting some guidance

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MIDAIR COLLISION LEAVES 67 DEAD; WORST U.S. CRASH IN TWO DECADES



KENNY HOLSTON/THE NEW YORK TIMES



Sources: Flight data by Flightradar24; aerial image by Airbus via Google Earth

THE NEW YORK TIMES

Crews searched the Potomac River on Thursday, a day after the collision of an American Airlines passenger jet and an Army Black Hawk helicopter. Dozens of bodies were found in the wreckage.

Blaming Diversity Hiring, Trump Turns Accident Into Grievance

By **ELISABETH BUMILLER**

On the morning after a devastating midair collision of an American Airlines plane and an Army helicopter that sent 67 people, not one of whom survived, into the icy waters of the Potomac River, President Trump stood behind the White House lectern and for a brief moment did what presidents do.

He called it “a tragedy of terrible proportions.” He said “we grieve for every precious soul that has been taken from us so suddenly.” He took solace along with

the nation, he said, that the journey of the 67 souls ended “in the warm embrace of a loving God.”

But then, as Navy divers continued their search for bodies in the Potomac, the president transitioned into some of the most extraordinary public statements he has ever made, among them equating diversity with incompetence.

“We do not know what led to this crash, but we have some very strong opinions and ideas,” Mr. Trump began, his tone moving from solace to irritation. “And I think we’ll probably state those opinions now.”

Recalling the Extremes of His First Term

And so he did. For the next 30 minutes, citing no evidence, Mr. Trump blamed diversity efforts at the Federal Aviation Administration for lowering standards for air traffic controllers. He blamed the Obama administration, claiming it had determined that the F.A.A. work force was “too white.”

He blamed the Biden administration, too, and its secretary of

THE WEATHER

Today, cloudy, rain at times, high 44. Tonight, a little rain early, cloudy, turning breezy, low 35. Tomorrow, partly to mostly sunny, brisk, colder, high 38. Weather map, Page B12.

FIREBALL OVER CAPITAL

Early Investigation Looks at Staffing of Tower at Reagan Airport

By **CAMPBELL ROBERTSON**
and **THOMAS FULLER**

WASHINGTON — On a clear night at Reagan National Airport, an air traffic controller radioed a warning to an Army Black Hawk helicopter traveling south along the Potomac River.

“PAT25,” the controller said, using the call sign for the Black Hawk, “do you have the CRJ in sight?”

CRJ, shorthand for a type of passenger jet, was American Airlines Flight 5342. The plane was arriving after a two-and-a-half-hour journey from Wichita, Kan., and carrying 64 people. Among them were men returning from a duck-hunting trip and a group of figure skaters, including several teenagers, some of their parents, and two former world champions from Russia.

The tower told the helicopter to “pass behind” the plane, and the response from the Army pilot came quickly. “The aircraft’s in sight,” the pilot said, and he requested permission for “visual separation” — meaning to maneuver away from the plane.

But moments later, gasps were heard coming from the control tower. “Oooh!” someone exclaimed, according to a recording posted to LiveATC.net, a site that compiles control tower communication.

In the skies above Washington, just three miles from the White House, a fireball illuminated the night.

The midair collision of the Black Hawk and Flight 5342, which killed everyone on the jet and all three people in the helicopter, was the deadliest crash in the United States in more than 20 years. Why it occurred was still unknown on Thursday, but a preliminary Federal Aviation Administration report noted that the air traffic control tower, monitoring one of the country’s most congested air corridors, was understaffed at the time.

Recovery crews searching in the icy Potomac on Thursday had pulled at least 27 bodies from the plane and one from the helicopter, officials said.

Even though accident investigators had barely collected any information, President Trump quickly began assigning fault. In a news conference, he blamed the helicopter pilots and his political adversaries. And, in comments that most likely pleased many of his supporters and offended many other Americans, he blamed diversity.

Mr. Trump said that warnings issued to the helicopter should have come earlier, but also that “the people in the helicopter should have seen where they were going.” Referring to the airplane’s path, he added: “What was a heli-

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transportation, Pete Buttigieg.

“That guy is a real winner,” Mr. Trump said, sarcastically. “He’s a disaster.”

But mostly the president of the United States, who was consulting prepared remarks, blamed diversity. Washington was in mourning, chaplains were at the scene of the crash, but Mr. Trump plowed ahead. His remarks were the latest offensive in the White House war to root out “woke” elements and diversity, equity and inclusion initiatives across the federal government.

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Migrants Pack a Paris Theater

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Trump Tests Control of Schools

Executive orders aim to restrict some discussions in classrooms. But schools are often resistant to change. **PAGE A20**

A Mountaintop Refuge

Residents of Kentucky’s floodplains are rebuilding on unusually high ground, at reclaimed strip mines. **PAGE A17**



BUSINESS B1-5

Economy’s Strong 2024 Finish

A 2.3 percent growth rate for the fourth quarter capped a robust year, but a new presidential administration full of uncertainty clouds the outlook. **PAGE B1**

OBITUARIES B10-11

‘Joyful Fixture’ in Big Easy

As a cook and writer, Pableaux Johnson, 59, united communities through a love of New Orleans’ traditions. **PAGE B11**

A Pop Singer Turned Survivor

Marianne Faithfull, Mick Jagger’s muse in the ’60s, hit hard times before emerging triumphant. She was 78. **PAGE B10**

WEEKEND ARTS C1-10

An Elusive Top Grammy

Beyoncé’s losses in the album of the year category have prompted debates and some head-scratching. **PAGE C1**

Cutting Back on the Paint

The quirky Blue Man Group is ending its long run in New York, though it will continue performing elsewhere. **PAGE C1**



SPORTS B6-9, 12

New Franchise, Still an Icon

Steven Stamkos is finally settling in with the Nashville Predators, but the transition hasn’t been easy. **PAGE B6**

Challenging N.C.A.A. Bylaws

A lawsuit brought by a Wisconsin football player will test the new name, image and likeness rules. **PAGE B7**

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Jamelle Bouie

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